

M/S Tenguria Cold Storage v. State of U.P.

Allahabad High Court · Division Bench · 25 February 2020 · Writ - C No. 6672 of 2020 · **Writ disposed of; petitioner relegated to the Executive Engineer under Clause 6.14 for easy installments, demand notice to abide that decision.**

HEADNOTE

The High Court will not itself fix installments for recovery of electricity dues and penalty. Clause 6.14 of the Electricity Supply Code vests that power in the Executive Engineer. The consumer, who accepted the demand, was directed to apply to the EE within a week; the EE is to consider easy installments within three weeks, and the 20 December 2019 demand notice remains subject to that decision.

FACTUAL SUMMARY

M/S Tenguria Cold Storage challenged a 20 December 2019 demand notice issued for recovery of electricity dues and a penalty. Its counsel accepted the entire liability and sought only that the Court fix easy installments. The Division Bench refused to schedule payment itself, identified the Executive Engineer as the authority under Clause 6.14 of the Electricity Supply Code, and disposed of the writ by directing consideration of an installment application, leaving the demand notice subject to that decision.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for electricity dues

HOLDING

The High Court cannot fix installments for realization of electricity dues. The Executive Engineer is the appropriate authority vested with power under Clause 6.14 of the Electricity Supply Code to fix installments. On an application made within a week, the EE is to consider easy installments within three weeks, and the demand notice remains subject to that decision. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court refused to schedule installments itself and directed the consumer, who had accepted the demand, to apply to the Executive Engineer, the authority vested under Clause 6.14 with power to fix easy installments. ¶ 1

instalment-facility-clause-6.14-for-financial-distress The consumer accepted the entire electricity-dues and penalty liability and sought only easy installments; that facility was left to the Executive Engineer under Clause 6.14 rather than being granted by the writ court. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER, AND ON WHAT TERMS, EASY INSTALLMENTS SHOULD BE ALLOWED

Relegated to the Executive Engineer under Clause 6.14; the 20 December 2019 demand notice is to abide that decision. ¶ 1